UNITED STATES DISTRICT COURT
WESTERN DISTRICT OF KENTUCKY
LOUISVILLE DIVISION

UNITED STATES OF AMERICA,	)	Case No. 3:22-CR-00094-DJH
Plaintiff,	)	**REDACTED**
v.	)	
SUZANNE CRAFT,	)	
Defendant.	)	March 10, 2023 Louisville, Kentucky

* * * * *

VOLUME 5
TRANSCRIPT OF JURY TRIAL
BEFORE HONORABLE DAVID J. HALE
UNITED STATES DISTRICT JUDGE

* * * * *

APPEARANCES:

For United States: Christopher C. Tieke
Stephanie M. Zimdahl
U.S. Attorney's Office
717 West Broadway
Louisville, KY 40202

For Defendant: Angela M. Rea
Western Kentucky Federal
Community Defender, Inc.
629 S. 4th Avenue, Suite 200
Louisville, KY 40202

[Defendant present.]

Dena Legg, RDR, CRR, CCR-KY
Official Court Reporter
232 U.S. Courthouse
Louisville, KY 40202
(502) 625-3778

Proceedings recorded by certified stenographer, transcript produced by computer.

(Begin proceedings in open court at 9:27 a.m. Jury out.)

THE COURT: Good morning.

MULTIPLE SPEAKERS: Good morning, Your Honor.

THE COURT: We're back on the record in U.S. v. Craft. The jury is not present in the courtroom. We're starting a little bit later than I had hoped, but this last set of revisions took a little longer than anticipated. We've provided you with the updated set of draft jury instructions. There is one yet to be completed, Ms. Rea, that I will need your input on. Let me walk you through now the revisions made from the last set.

First of all, if you will look at Instruction Number 4 on page 4, there were two lines removed from the fourth paragraph. Those lines read: "I also ruled that you could not see some of the exhibits that the lawyers wanted you to see, and sometimes I ordered you to disregard things that you saw or heard" -- excuse me -- "or I struck things from the record." I removed those two lines because I don't think any of those reminders are applicable here.

MR. TIEKE: I don't believe so, Your Honor.

THE COURT: Next let me ask you to look at page 9. That's the new Instruction 8. That is the evidence rule 610 instruction that the parties agreed to yesterday.

MS. REA: And, Your Honor, that is what we agreed to. I think it's appropriate for the purpose that we need it for.

MR. TIEKE: That's fine with the United States, Your Honor.

THE COURT: Let's then talk about -- let's see here -- Instruction Number 21 on page 27. This is the pattern instruction and the place in the instructions where it is normally positioned. This is an instruction that in my experience is slightly more important when the defendant does not testify because this is the opportunity for the defense to crystallize the position of the defense.

Obviously, Ms. Craft is testifying, and so it is a little easier for the jury to hear directly from her. What do you want to say here, Ms. Rea? The typical, I think, in a situation like this is simply to say, "The defendant's position is that she denies all allegations as charged in the indictment."

MS. REA: Your Honor, I think that's an appropriate way to go about it. I also think, you know, based on the burden of proof, it's -- the Government has to prove her guilty beyond a reasonable doubt. She starts out being innocent.

THE COURT: All that's covered within these instructions.

MS. REA: All that's covered elsewhere, and I don't know that we need it.

THE COURT: That's fine too.

MS. REA: I would be perfectly happy and actually prefer that we simply not include it. And that would also mean

in the --

THE COURT: In the Instruction Number 1 --

MS. REA: Yeah, to excise that, that would be my request.

THE COURT: All right. So I presume no objection from the Government there.

MR. TIEKE: No, Your Honor.

THE COURT: So we will then strike the line from Instruction Number 1 that reads: "Then I will explain the defendant's position." And we will remove Instruction Number 21 and renumber thereafter as appropriate.

So let's talk now about Instruction Number 23. That's the 703 opinion testimony instruction that we discussed a bit yesterday, I believe. Let me start with the Government here. What's your position?

MR. TIEKE: Your Honor, that instruction's acceptable to the Government.

MS. REA: It's acceptable to me too.

THE COURT: Instruction Number 24 is the 703(a) pattern mixed opinion and fact testimony instruction.

MR. TIEKE: That's also fine with the Government, Your Honor.

MS. REA: I agree, Your Honor.

THE COURT: All right. I believe the only other change is with respect to the last instruction which introduces

the verdict form, which is 37 in the current draft, and since we're removing the defendant's position instruction will be, in the final, 36.

You will see that I have altered it from the last version. The last version read: "I have prepared a verdict form that you should use to record your verdict."

The form reads as follows with a colon -- I have removed that sentence and instead -- and replaced it with a sentence that reads: "It is attached to these instructions," which of course, as I typically do it, the verdict form is the last item; and then moved the line from the second paragraph, "Your foreperson should then sign the form, put the date on it, and return it to me" as its own stand-alone final line. I think that's slightly -- that's a slight improvement, given that we have a verdict form with special verdict questions.

Ms. Rea, I'll start with you this time.

MS. REA: Your Honor, I think it's clear. That revised instruction is acceptable to me.

MR. TIEKE: Your Honor, I believe that's fine with the United States as well.

THE COURT: I appreciate your enthusiasm.

Let's talk now about the verdict form. It is my practice -- I'm not wedded to it. If the parties prefer me to do something different, I'm open to hearing, but it is my practice, at the conclusion of the -- what is now Instruction 37 and will be 36

to read the verdict form to the jury as part of the instructions. Is the way it's set up acceptable to both sides?

MS. REA: It's acceptable to me, Your Honor.

MR. TIEKE: That looks fine, Your Honor.

THE COURT: All right. So then the only change to be made from this discussion is that we will remove the line referring to the defendant's position from Instruction 1.

We will strike in full Instruction 21 from this -- yes, from this version. And we will do that now while the jury is being lined up unless there's anything else with respect to instructions that either side wishes to raise. This is your final opportunity.

MS. REA: No, sir.

MR. TIEKE: Nothing else to raise for the instructions, Your Honor.

THE COURT: All right. So we will put the instructions in final form, and they will be ready to go.

Is there anything else that we need to take up at this time?

MR. TIEKE: No, Your Honor. Could we just have a quick break to use the bathroom and then --

THE COURT: Yes.

MS. REA: Nothing else, Your Honor.

THE COURT: Why don't we take -- why don't you hold up. Since we're taking a break now, we'll -- well, I don't know. Are you done after --

MS. REA: Yes, Your Honor, I am.

THE COURT: Do you anticipate any rebuttal?

MR. TIEKE: Unlikely, Your Honor. I don't know what's going to come up, but no at this point.

THE COURT: This is really just a question about another bathroom break. So it's not that consequential. If there is no rebuttal, will you be prepared to go, then, straight to instructions?

MR. TIEKE: Yes.

THE COURT: I mean, I think we'll have a Rule 29 conference.

MS. REA: We will briefly.

THE COURT: But if that proceeds quickly, we'll do that at the bench outside the hearing of the jury. Why don't we play it by ear, given the hesitation all the way around.

All right. Take your break. I'll see you -- we'll plan on starting in earnest here in about ten minutes.

MR. TIEKE: Thank you, Judge.

THE COURT: When we return from the break, if you will ask Ms. Craft to take her position.

MS. REA: Yes, sir.

THE COURT: And remind her that she remains under oath from yesterday.

MS. REA: Yes.

(Recess at 9:39 a.m. until 9:50 a.m. Jury out.)

THE COURT: Mr. Tieke, Ms. Zimdahl, Ms. Rea, anything we need to take up before the jury returns to the box?

MR. TIEKE: No, Your Honor.

MS. REA: No, Your Honor.

(Jury in 9:52 a.m.)

THE COURT: Good morning, members of the jury. We are now ready to proceed.

MR. TIEKE: Thank you, Your Honor.

(Transcript of testimony of SUZANNE CRAFT previously filed.)

THE COURT: Ms. Rea, do you have another witness to call?

MS. REA: I do not, Your Honor. The defense will rest.

THE COURT: Mr. Tieke, Ms. Zimdahl?

MR. TIEKE: Your Honor, we're ready to rest as well.

THE COURT: Members of the jury, this concludes all testimony in this trial. The next steps will be for me to give you instructions. Then you will hear from the lawyers in closing arguments. I will have final procedural instructions for you. We will then draw randomly two of you to serve as alternate jurors, and then you will be excused to deliberate.

I am going to give you now another brief break to allow the lawyers to prepare for the closing arguments, and I will bring you back, at which time I will read to you the instructions.

The case is now essentially over, but you still cannot talk

about anything that you have heard in this case. It's very close to when you will be required to do that, but don't start early. You still need to hear instructions and arguments.

All right. I will see you back in -- we'll say about ten minutes should be all that we need.

(Jury out 10:30 a.m.)

THE COURT: You may be seated. The jury is now out of the room.

I'll give you a few minutes to prepare. I think we are done with instructions; correct?

MS. REA: Yes, Your Honor.

MR. TIEKE: Yes, Your Honor.

THE COURT: So I will be prepared then to go straight through the instructions.

Madam Clerk, if you will hand me -- I think the only item left to decide is where to break. I believe I will read Instructions 1 through 30 prior to closing arguments and then pick up with Instruction Number 31 after the completion of the closing arguments.

MS. REA: That makes sense to me, Your Honor.

MR. TIEKE: That's fine, Your Honor.

THE COURT: Do you think you'll need more than about ten minutes?

MS. REA: No, sir.

MR. TIEKE: No, Your Honor.

THE COURT: Very well. I'll be back in about ten minutes. Thank you.

(Recess at 10:32 a.m. until 10:42 a.m. Jury out.)

(Bench conference on the record.)

THE COURT: Okay. Outside the hearing of the jury, do you wish to renew your Rule 29 motion?

MS. REA: Your Honor, I will renew those motions based on the arguments that I previously made. The additional basis would be that the Court has now heard from Ms. Craft, who has indicated that she did not commit any of the acts. I don't have any other information to add.

MR. TIEKE: Your Honor, I think, viewing it in the light most favorable to the Government, we will just adopt the arguments that we made with respect to the earlier Rule 29 motion and would, in fact, just emphasize that we believe that the defense case actually provided more evidence of the allegations against the defense. In particular, the cataloging and true nature -- it explains the true nature and the purpose behind the threats.

So we would argue that the defense case, despite Ms. Craft's denial, actually provided more evidence. And so when viewing all of that in the light most favorable to the Government, we believe we've met the standard of this case to take it to the jury.

THE COURT: I'm simply gonna find in the same fashion

as I found with respect to the first Rule 29 motion at the close of the Government's proof, that it is sufficient evidence for any rational trier of fact to find beyond a reasonable doubt on all five counts.

Of course, Rule 29 and Rule 32 present further options for the defendant, and beyond that, I think I need not -- anything else along those lines we need to take up?

MS. REA: No, sir.

MR. TIEKE: Thank you, Your Honor.

THE COURT: Are we ready to have the jury in and proceed with the first set of instructions?

MS. REA: Yes, Your Honor.

MR. TIEKE: Yes, Your Honor.

THE COURT: Very well. Thank you.

(End of bench conference.)

(Jury in 10:47 a.m.)

THE COURT: It is now time for me to read you the first set of instructions.

Instruction Number 1. Members of the jury, now it is time for me to instruct you about the law that you must follow in deciding this case. I will start by explaining your duties and the general rules that apply in every criminal case. Then I will explain the elements or parts of the crimes that the defendant is accused of committing. Then I will explain some rules that you must use in evaluating particular testimony and

evidence. And, last, I will explain the rules that you must follow during your deliberations in the jury room and the possible verdicts that you may return.

Please listen carefully to everything that I say. A copy of these instructions will be provided to you when you retire to deliberate.

Instruction Number 2. You have two main duties as jurors. The first one is to decide what the facts are from the evidence that you saw and heard here in court. Deciding what the facts are is your job, not mine, and nothing that I have said or done during this trial was meant to influence your decision about the facts in any way.

Your second duty is to take the law that I give you, apply it to the facts, and decide if the Government has proved the defendant guilty beyond a reasonable doubt.

It is my job to instruct you about the law, and you are bound by the oath that you took at the beginning of the trial to follow the instructions that I give you even if you personally disagree with them. This includes the instructions that I gave you before and during the trial and these instructions. All the instructions are important, and you should consider them together as a whole.

The lawyers may talk about the law during their arguments, but if what they say is different from what I say, you must follow what I say. What I say about the law controls.

Perform these duties fairly. Do not let any bias, sympathy, or prejudice that you may feel toward one side or the other influence your decision in any way.

Instruction Number 3. As you know, the defendant has pleaded not guilty to the crimes charged in the indictment. The indictment is not any evidence at all of guilt. It is just the formal way that the Government tells the defendant what crimes she is accused of committing. It does not even raise any suspicion of guilt. Instead, the defendant starts the trial with a clean slate, with no evidence at all against her, and the law presumes that she is innocent.

This presumption of innocence stays with her unless the Government presents evidence here in court that overcomes the presumption and convinces you beyond a reasonable doubt that she is guilty.

This means that the defendant has no obligation to present any evidence at all or to prove to you in any way that she is innocent. It is up to the Government to prove that she is guilty, and this burden stays on the Government from start to finish.

You must find the defendant not guilty unless the Government convinces you beyond a reasonable doubt that she is guilty. The Government must prove every element of the crimes charged beyond a reasonable doubt.

Proof beyond a reasonable doubt does not mean proof beyond

all possible doubt. Possible doubts or doubts based purely on speculation are not reasonable doubts. A reasonable doubt is a doubt based upon reason and common sense. It may arise from the evidence, the lack of evidence, or the nature of the evidence. Proof beyond a reasonable doubt means proof which is so convincing that you would not hesitate to rely and act on it in making the most important decisions in your own lives.

If you are convinced that the Government has proved the defendant guilty beyond a reasonable doubt, say so by returning a guilty verdict. If you are not convinced, say so by returning a not guilty verdict.

Instruction Number 4. You must make your decision based only on the evidence that you saw and heard here in court. Do not let rumors, suspicions, or anything else that you may have seen or heard outside of court influence your decision in any way.

The evidence in this case includes only what the witnesses said while they were testifying under oath, the exhibits that I allowed into evidence, and the stipulations that the lawyers agreed to. Nothing else is evidence. The lawyers' statements and arguments are not evidence. Their questions and objections are not evidence. My legal rulings are not evidence, and my comments and questions are not evidence.

During the trial, I did not let you hear the answers to some of the questions that the lawyers asked. You must completely

ignore all of these things. Do not even think about them. Do not speculate about what a witness might have said or what an exhibit might have shown. These things are not evidence, and you are bound by your oath not to let them influence your decision in any way. Make your decision based only on the evidence as I have defined it here and nothing else.

Instruction Number 5. You should use your common sense in weighing the evidence. Consider it in light of your everyday experience with people and events and give it whatever weight you believe it deserves. If your experience tells you that certain evidence reasonably leads to a conclusion, you are free to reach that conclusion.

Instruction Number 6. Now, some of you may have heard the terms "direct evidence" and "circumstantial evidence."

Direct evidence is simply evidence like the testimony of an eyewitness which, if you believe it, directly proves a fact. If a witness testified that he saw it raining outside and you believed him, that would be direct evidence that it was raining.

Circumstantial evidence is simply a chain of circumstances that indirectly proves a fact. If someone walked into the courtroom wearing a raincoat covered with drops of water and carrying a wet umbrella, that would be circumstantial evidence from which you could conclude that it was raining.

It is your job to decide how much weight to give the direct and circumstantial evidence. The law makes no distinction

between the weight that you should give to either one or say that one is any better evidence than the other. You should consider all the evidence, both direct and circumstantial, and give it whatever weight you believe it deserves.

Instruction Number 7. Another part of your job as jurors is to decide how credible or believable each witness was. This is your job, not mine. It is up to you to decide if a witness's testimony was believable and how much weight you think it deserves. You are free to believe everything that a witness said, or only part of it, or none of it at all, but you should act reasonably and carefully in making these decisions.

Let me suggest some things for you to consider in evaluating each witness's testimony. Ask yourself if the witness was able to clearly see or hear the events. Sometimes even an honest witness may not have been able to see or hear what was happening and may make a mistake. Ask yourself how good the witness's memory seemed to be. Did the witness seem able to accurately remember what happened?

Ask yourself if there was anything else that may have interfered with the witness's ability to perceive or remember the events. Ask yourself how the witness acted while testifying. Did the witness appear honest, or did the witness appear to be lying?

Ask yourself if the witness had any relationship to the Government or the defendant or anything to gain or lose from the

case that might influence the witness's testimony. Ask yourself if the witness had any bias or prejudice or reason for testifying that might cause the witness to lie or to slant the testimony in favor of one side or the other.

Ask yourself if the witness testified inconsistently while on the witness stand or if the witness said or did something, or failed to say or do something, at any other time that is inconsistent with what the witness said while testifying.

If you believe that the witness was inconsistent, ask yourself if this makes the witness's testimony less believable. Sometimes it may; other times it may not. Consider whether the inconsistency was about something important or about some unimportant detail. Ask yourself if it seemed like an innocent mistake or if it seemed deliberate.

And ask yourself how believable the witness's testimony was in light of all the other evidence. Was the witness's testimony supported or contradicted by other evidence that you found believable? If you believe that a witness's testimony was contradicted by other evidence, remember that people sometimes forget things and that even two honest people who witness the same event may not describe it exactly the same way.

These are only some of the things that you may consider in deciding how believable each witness was. You may also consider other things that you think shed some light on the witness's believability. Use your common sense and your everyday

experience in dealing with other people and then decide what testimony you believe and how much weight you think it deserves.

Instruction Number 8. You have heard questions about the religious affiliation of one witness and the defendant's daughter. You may not consider this evidence in assessing the credibility of any witness.

Instruction Number 9. One more point about the witnesses. Sometimes jurors wonder if the number of witnesses who testified makes any difference. Do not make any decisions based only on the number of witnesses who testified. What is more important is how believable the witnesses were and how much weight you think their testimony deserves. Concentrate on that, not the numbers.

Instruction Number 10. There is one more general subject that I want to talk to you about before I begin explaining the elements of the crimes charged. The lawyers for both sides objected to some of the things that were said or done during the trial. Do not hold that against either side. The lawyers have a duty to object whenever they think that something is not permitted by the rules of evidence. Those rules are designed to make sure that both sides receive a fair trial.

And do not interpret my rulings on their objections as any indication of how I think the case should be decided. My rulings were based on the rules of evidence, not on how I feel about the case. Remember that your decision must be based only

on the evidence that you saw and heard here in court.

Instruction Number 11. That concludes the part of my instructions explaining your duties and the general rules that apply in every criminal case. In a moment, I will explain the elements of the crimes that the defendant is accused of committing. But before I do that, I want to emphasize that the defendant is only on trial for the particular crimes charged in the indictment. Your job is limited to deciding whether the Government has proved the crimes charged.

Number 12. The defendant has been charged with several crimes. The number of charges is no evidence of guilt, and this should not influence your decision in any way. It is your duty to separately consider the evidence that relates to each charge and to return a separate verdict for each one. For each charge, you must decide whether the Government has presented proof beyond a reasonable doubt that the defendant is guilty of that particular charge.

Your decision on one charge, whether it is guilty or not guilty, should not influence your decision on any of the other charges.

Number 13. Count 1 of the indictment charges that on or about November 20, 2020, in the Western District of Kentucky, Jefferson County, Kentucky, the defendant, Suzanne Craft, did knowingly deposit in a post office or an authorized depository for mail matter to be sent and delivered by the postal service

and caused to be delivered by the postal service according to the directions thereon, a communication, addressed to another person, whose identity is known to the grand jury, containing a threat to injure the person of the addressee and others, in violation of Title 18, United States Code, Section 876(c).

For you to find the defendant guilty of this crime, you must be convinced that the Government has proved each and every one of the following elements beyond a reasonable doubt:

(A) First, that the defendant knowingly mailed or caused to be mailed by the United States Postal Service a communication.

(B) Second, that the communication contained a threat to injure a particular person or particular group of individuals.

And (C), third, that the defendant mailed the communication for the purpose of making a threat or knowing that the communication would be viewed as a threat.

An act is done "knowingly" if done voluntarily and intentionally and not because of mistake or accident or other innocent reason.

The word "threat" means a serious statement expressing an intention to injure any person which under the circumstances would cause apprehension in a reasonable person as distinguished from idle or careless talk, exaggeration, or something said in a joking manner.

If you are convinced that the Government has proved all of these elements, say so by returning a guilty verdict on this

charge. If you have a reasonable doubt about any one of these elements, then you must find the defendant not guilty of this charge.

The Government need not prove that the defendant intended to carry out the threat or was capable of carrying out the threats at the time it was made or that specific targeted individuals knew about the threats against them. To qualify as a threat, the statement need not -- I'm sorry -- the statement need not be communicated to the targeted individual.

Instruction Number 14. Count 2 of the indictment charges that on or about November 5, 2020, in the Western District of Kentucky, Jefferson County, Kentucky, the defendant, Suzanne Craft, did knowingly deposit in a post office or an authorized depository for mail matter to be sent and delivered by the postal service and caused to be delivered by the postal service, according to the directions thereon, a communication, addressed to another person, whose identity is known to the grand jury, containing a threat to injure the person of the addressee and others, in violation of Title 18, United States Code, Section 876(c).

For you to find the defendant guilty of this crime, you must be convinced that the Government has proved each and every one of the following elements beyond a reasonable doubt:

First, that the defendant knowingly mailed or caused to be mailed by the United States Postal Service a communication.

Second, that the communication contained a threat to injure a particular person or particular group of individuals.

And, third, that the defendant mailed the communication for the purpose of making a threat or knowing that the communication would be viewed as a threat.

An act is done "knowingly" if done voluntarily and intentionally and not because of mistake or accident or other innocent reason.

The word "threat" means a serious statement expressing an intention to injure any person which under the circumstances would cause apprehension in a reasonable person as distinguished from idle or careless talk, exaggeration, or something said in a joking manner.

If you are convinced that the Government has proved all of these elements, say so by returning a guilty verdict on this charge. If you have a reasonable doubt about any of these elements, then you must find the defendant not guilty of this charge.

The Government need not prove that the defendant intended to carry out the threat or was capable of carrying out the threat at the time it was made or that specific targeted individuals knew about the threats against them. To qualify as a threat, the statement need not be communicated to the targeted individual.

Number 15. Count 3 of the indictment charges that on or

about November 6, 2020, in the Western District of Kentucky, Jefferson County, Kentucky, the defendant, Suzanne Craft, did knowingly deposit in a post office or an authorized depository for mail matter to be sent and delivered by the postal service and caused to be delivered by the postal service according to the directions thereon, a communication, addressed to another person, whose identity is known to the grand jury, containing a threat to injure the person of the addressee and others, in violation of Title 18, United States Code, Section 876(c).

For you to find the defendant guilty of this crime, you must be convinced that the Government has proved each and every one of the following elements beyond a reasonable doubt:

First, that the defendant knowingly mailed or caused to be mailed by the United States Postal Service a communication.

Second, that the communication contained a threat to injure a particular person or a particular group of individuals.

And, third, that the defendant mailed the communication for the purpose of making a threat or knowing that the communication would be viewed as a threat.

An act is done "knowingly" if done voluntarily and intentionally and not because of mistake or accident or other innocent reason.

The word "threat" means a serious statement expressing an intention to injure any person which under the circumstances would cause apprehension in a reasonable person as distinguished

from idle or careless talk, exaggeration, or something said in a joking manner.

If you are convinced that the Government has proved all of these elements, say so by returning a guilty verdict on this charge. If you have a reasonable doubt about any of these elements, then you must find the defendant not guilty of this charge.

The Government need not prove that the defendant intended to carry out the threat or was capable of carrying out the threat at the time it was made or that specific targeted individuals knew about the threats against them. To qualify as a threat, the statement need not be communicated to the targeted individual.

Number 16. Count 4 of the indictment charges that on or about November 6, 2020, in the Western District of Kentucky, Jefferson County, Kentucky, the defendant, Suzanne Craft, did knowingly deposit in a post office or an authorized depository for mail matter to be sent and delivered by the postal service and caused to be delivered by the postal service according to the directions thereon, a communication, different from the communication charged in Count 3 of this indictment, addressed to another person, whose identity is known to the grand jury, containing a threat to injure the person of the addressee and others, in violation of Title 18, United States Code, Section 876(c).

For you to find the defendant guilty of this crime, you must be convinced that the Government has proved each and every one of the following elements beyond a reasonable doubt:

First, that the defendant knowingly mailed or caused to be mailed by the United States Postal Service a communication.

Second, that the communication contained a threat to injure a particular person or particular group of individuals.

And, third, that the defendant mailed the communication for the purpose of making a threat or knowing that the communication would be viewed as a threat.

An act is done "knowingly" if done voluntarily and intentionally and not because of mistake or accident or other innocent reason.

The word "threat" means a serious statement expressing an intention to injure any person which under the circumstances would cause apprehension in a reasonable person as distinguished from idle or careless talk, exaggeration, or something said in a joking manner.

If you are convinced that the Government has proved all of these elements, say so by returning a guilty verdict on this charge. If you have a reasonable doubt about any of these elements, then you must find the defendant not guilty of this charge.

The Government need not prove that the defendant intended to carry out the threat or was capable of carrying out the threat

at the time it was made or that specific targeted individuals knew about the threats against them. To qualify as a threat, the statement need not be communicated to the targeted individual.

Number 17. Count 5 of the indictment charges that in or around December 2020, in the Western District of Kentucky, Jefferson County, Kentucky, the defendant, Suzanne Craft, did knowingly deposit in a post office or an authorized depository for mail matter to be sent and delivered by the postal service and caused to be delivered by the postal service according to the directions thereon, a communication, addressed to another person, whose identity is known to the grand jury, containing a threat to injure the person of the addressee and others, in violation of Title 18, United States Code, Section 876(c).

For you to find the defendant guilty of this crime, you must be convinced that the Government has proved each and every one of the following elements beyond a reasonable doubt:

First, that the defendant knowingly mailed or caused to be mailed by the United States Postal Service a communication.

Second, that the communication contained a threat to injure a particular person or particular group of individuals.

And, third, that the defendant mailed the communication for the purpose of making a threat or knowing that the communication would be viewed as a threat.

An act is done "knowingly" if done voluntarily and

intentionally and not because of mistake or accident or other innocent reason.

The word "threat" means a serious statement expressing an intention to injure any person which under the circumstances would cause apprehension in a reasonable person as distinguished from idle or careless talk, exaggeration, or something said in a joking manner.

If you are convinced that the Government has proved all of these elements, say so by returning a guilty verdict on this charge. If you have a reasonable doubt about any of these elements, then you must find the defendant not guilty of this charge.

The Government need not prove that the defendant intended to carry out the threat or was capable of carrying out the threat at the time it was made or that specific targeted individuals knew about the threats against them. To qualify as a threat, the statement need not be communicated to the targeted individual.

Instruction Number 18. In connection with Counts 1 through 5 of the indictment, the Government has alleged that the defendant selected the victims of the threatening communications because of their actual or perceived race or color. If you determine that the defendant knowingly sent threatening communications by mail by finding her guilty of any or all of the charges in Counts 1 through 5, you must then determine

beyond a reasonable doubt whether the defendant sent the particular threatening communication because of the actual or perceived race or color of the victims. You will do this by answering special verdict questions on the verdict form.

To prove that the defendant acted "because of" the victim's or group of victims' actual or perceived race or color, the Government must prove beyond a reasonable doubt that the threats would not have been made but for the fact of the victim's actual or perceived race or color.

This does not mean that the Government must prove that the victim's actual or perceived race or color was the defendant's sole or only motive for the threats. You may find that the defendant sent the threatening communications because of race or color even if there was more than one reason why she threatened the persons identified in Counts 1 through 5. You must find, however, that the person's actual or perceived race or color played a determinative role in the defendant's decision to threaten him or her.

The Government may prove this motive through direct evidence or may prove motive by circumstantial evidence.

Number 19. Next I want to say a word about the dates mentioned in the indictment. The indictment charges that the crimes happened on or about November 2, 2020; November 5, 2020; November 6, 2020; and December 2020. The Government does not have to prove that the crimes happened on these exact dates, but

the Government must prove that the crimes happened reasonably close to these dates.

Number 20. Next I want to explain something about proving a defendant's state of mind. Ordinarily there is no way that a defendant's state of mind can be proved directly because no one can read a person's mind and tell what that person is thinking, but a defendant's state of mind could be proved indirectly by the surrounding circumstances. This includes things like what the defendant said, what the defendant did, how the defendant acted, and any other facts or circumstances in evidence that show what was in the defendant's mind.

You may also consider the natural and probable results of any acts that the defendant knowingly did and whether it is reasonable to conclude that the defendant intended those results. This, of course, is all for you to decide.

Number 21. That concludes the part of my instructions explaining the elements of the crimes. Next I will explain some rules that you must use in considering some of the testimony and evidence.

Instruction Number 22. You have heard the testimony of Icel Kuznetsova, Jeremy Fletcher, and Hector Maldonado, who testified as opinion witnesses. You do not have to accept Icel Kuznetsova, Jeremy Fletcher, or Hector Maldonado's opinions. In deciding how much weight to give them, you should consider the witness's qualifications and how they reached their conclusions.

Also consider the other factors discussed in these instructions for weighing the credibility of witnesses.

Remember that you alone decide how much of a witness's testimony to believe and how much weight it deserves.

Number 23. You have heard the testimony of Charles Klein and Kristen Downs, who testified to both -- I'm sorry -- who testified to both facts and opinions. Each of these types of testimony should be given the proper weight.

As to the testimony on facts, consider the facts -- the factors discussed earlier in these instructions for weighing the credibility of witnesses.

As to the testimony on opinions, you do not have to accept Charles Klein or Kristen Downs' opinions. In deciding how much weight to give them, you should consider the witness's qualifications and how they reached these conclusions along with the other factors discussed in these instructions for weighing the credibility of witnesses.

Remember that you alone decide how much of a witness's testimony to believe and how much weight it deserves.

Number 24. You have heard the defendant testify. Earlier I talked to you about the credibility or the believability of the witnesses, and I suggested some things for you to consider in evaluating each witness's testimony. You should consider those same things in evaluating the defendant's testimony.

Number 25. You have heard the testimony of K.P. [redacted] (K.P.)

and S.P.1[redacted], two young witnesses. No witness is disqualified just because of age. There is no precise age that determines whether a witness may testify.

With any witness, young or old, you should consider not only age but also the witness's intelligence and experience and whether the witness understands the duty to tell the truth and the difference between truth and falsehood.

Number 26. The United States has presented evidence that in 2019 and 2020, the defendant's daughter used racial slurs against one of the victim children. You may not, one, attribute the racial slurs to the defendant; two, infer that the defendant taught her daughter to use the racial slurs; or, three, infer that the defendant instructed her daughter to use the racial slurs against one of the victim children.

Number 27. The Government and the defendant have agreed or stipulated to certain facts. Therefore, you must accept the following stipulated facts as proved:

One, on or about November 13, 2020, the items identified as United States Exhibits 4, 5, 6, 7, 8, 10, 11, and 12 were taken into custody as evidence by the Louisville Metro Police Department.

On or about December 16, 2020, the items identified as United States Exhibits 4, 5, 6, 7, 8, 10, 11, and 12 were transferred from the custody of the LMPD to the custody of the United States Postal Inspection Service, where they were

maintained in evidence.

On or about December 22, 2020, the items identified as United States Exhibits 4, 5, 6, 7, 8, 10, 11, and 12 were transferred from the custody of the United States Postal Inspection Service to the custody of the Federal Bureau of Investigation, where they were maintained in evidence.

And, four, on July 28, 2022, at approximately 12:48 p.m., counsel for the United States sent counsel for Suzanne Craft a letter indicating that Suzanne Craft was the target of a federal investigation into potential federal criminal violations involving the mailing of threatening communications and the interference of the right to fair housing. That same day and no later than 8:00 p.m., the contents of the letter were communicated to Ms. Craft.

Instruction Number 28. That concludes the part of my instructions explaining the rules for considering some of the testimony and evidence. Now let me finish up by explaining some things about your deliberations in the jury room and your possible verdicts.

The first thing that you should do in the jury room is choose someone to be your foreperson. This person will help to guide your discussions and will speak for you here in court.

Once you start deliberating, do not talk to the jury officer or to me or to anyone else except each other about the case. If you have any questions or messages, you must write them down on

a piece of paper, sign them, and then give them to the jury officer. The officer will give them to me, and I will respond as soon as I can. I may have to talk to the lawyers about what you have added -- asked. So it may take me some time to get back to you. Any question or message normally should be sent to me through your foreperson.

The exhibits that were admitted in evidence will be provided to you.

One more thing about messages. Do not ever write down or tell anyone, including me, how you stand on your votes. For example, do not write down or tell anyone that you are split 6-6 or 8-4 or whatever your vote happens to be. That should stay secret until you are finished.

Number 29. Remember that you must make your decision based only on the evidence that you saw and heard here in court. During your deliberations, you must not communicate with or provide any information to anyone by any means about this case.

You may not use any electronic device or media, such as a cell phone, smartphone, iPhone, computer or tablet, the internet, any internet service or any text or instant messaging service, any internet chat room, blog, or website, such as Facebook, Instagram, TikTok, MySpace, LinkedIn, YouTube, or Twitter, to communicate to anyone any information about this case or to conduct any research about this case until I accept your verdict.

In other words, you cannot talk to anyone on the phone, correspond with anyone, or electronically communicate with anyone about this case. You can only discuss the case in the jury room with your fellow jurors during deliberations. I expect you will inform me immediately if you become aware of another juror's violations of these instructions.

You may not use these electronic means to investigate or communicate about the case because it is important that you decide this case based solely on the evidence presented in this courtroom. Information on the internet or available through social media might be wrong, incomplete, or inaccurate. You are only permitted to discuss the case with your fellow jurors during deliberations because they have seen and heard the same evidence you have.

In our judicial system, it is important that you are not influenced by anything or anyone outside of the courtroom. Otherwise, your decision may be based on information known only by you and not your fellow jurors or the parties in the case. This would unfairly and adversely impact the judicial process.

A juror who violates these restrictions jeopardizes the fairness of these proceedings and a mistrial could result, which would require the entire process -- trial process to start over.

Number 30. Your verdict, whether it is guilty or not guilty, must be unanimous as to each count.

To find the defendant guilty of a particular count, every

one of you must agree that the Government has overcome the presumption of innocence with evidence that proves her guilt beyond a reasonable doubt.

To find her not guilty of a particular count, every one of you must agree that the Government has failed to convince you beyond a reasonable doubt. Either way, guilty or not guilty, your verdict must be unanimous as to each count.

That concludes this portion of the instructions. Is the Government now ready to proceed with its closing argument?

MR. TIEKE: Yes, Your Honor.

THE COURT: You will reserve approximately how much time for your rebuttal argument?

MR. TIEKE: Fifteen minutes, Your Honor.

THE COURT: Thank you.

MR. TIEKE: "Two dead N-lets." Ladies and gentlemen, those are not my words. Those are the words of the defendant, Suzanne Craft. Vulgar, repulsive, racially charged threats that she used to terrorize the Pineda family with in 2020, threats sent because of the race of the Pinedas' oldest children.

Now, we'll circle back to the facts of this case in a moment, but first I'd like to discuss the law that you're to follow in considering those facts.

Now, all the jury instructions that the judge went over, those are all important, and what he says is the law and must be followed. What I'm gonna do is go over just a couple of those

instructions to highlight a few things.

Now, the defendant is charged with mailing five distinct mailings as detailed in the jury instructions.

And if I could go to the Elmo, please.

For example, this is the instruction regarding Count 1, the November 2nd, 2020, mailing. For each of those five mailings, the United States must prove, first, that the defendant knowingly mailed or caused to be mailed by the United States Postal Service a communication; second, that the communication contained a threat to injure a particular person or particular group of individuals; and, third, that the defendant mailed the communication for the purpose of making a threat or knowing that the communication would be viewed as a threat. Those are with respect to each of the five mailings, and you'll have those instructions with you.

Thank you. If we could go back to --

Now, after you determine that the defendant mailed the threatening messages, you'll be asked to consider whether or not she did it because of race.

What does it mean to commit a crime because of something? A crime is because of something if that something is necessary for the crime to happen, meaning that if you took that thing out of the equation, the crime wouldn't have happened the way that it did. That's what the law calls a "but for cause."

The terms "but for cause" and "because of" mean the same

thing under the law, and I'll use them interchangeably. But the concept of but for causation, it may seem complicated at first, but it's a lot easier to understand if you apply it to a set of facts. And the Supreme Court has explained that concept using a baseball analogy. So let's do that.

So let's think about a baseball game between the Cincinnati Reds and the Pittsburgh Pirates. Let's say the Reds win one to nothing. To find out the but for causes of the Reds' win in that case, you must think about what things were necessary for the Reds to win. When you think about it, there might be many different causes for that win. If a Reds batter hits a home run, then that's a but for cause, because if you take that one thing away, the one-to-nothing win doesn't happen.

Another obvious cause is good pitching by the Reds. You can't win one to nothing unless you have good pitching. Other causes might be bad hitting by the Pirates, great fielding by the Reds, a favorable call by the umpire. Even the league's decision to schedule the game is a but for cause, because if the game had never been scheduled in the first place, the Reds could have never won it.

The point of that analogy is to drive home an important concept of but for causation, and that is that most events have a lot of different but for causes. And something doesn't have to be a major factor to be a but for cause. As long as it's one of the reasons for the outcome, that's all that's required by

the law.

In this context, it means that the United States does not have to prove that the defendant was a racist. Indeed, that's not what the United States has argued at all. Instead, all you have to find is that the race of the Pineda children was one of the reasons that this happened the way that it did.

Now, at the beginning of this case, my colleague, Ms. Zimdahl, told you that the United States would prove beyond a reasonable doubt that the defendant used the mail to send threatening communications to her neighbors, the Pinedas, and that she did so because of their perceived case -- race or color. And that's exactly what the Government showed you this week. That's exactly what they did -- we did over this week. The United States proved beyond a reasonable doubt that Craft committed the crimes she's accused of committing.

Now, those three elements of the charge that I talked about earlier in the jury instructions, I'd like to discuss them somewhat out of order because some are more in dispute than others in this case. So we'll start with element two.

The second element of the charged crimes requires the United States to prove that the mailings and letters contained a threat to injure a particular person or particular group of individuals. Folks, I would submit to you that any reasonable person receiving the same threatening mailings the Pinedas received would perceive those threats to be authentic. Just

take a look at the threats that were charged -- the five threats that were charged in this case addressed to Michella Pineda at her address, many bearing the return address "N-let Destroyer" in the same cutout letters.

And, ladies and gentlemen, those are only the charged threats. Recall, as you heard from the Pinedas, they also received a number of other similar threats containing similar racially charged language, including threats such as "Die stupid bitch, move out, get out and bullets," and "You had enough N-word bitch." The United States would submit that for each of the charges it has proven element two beyond a reasonable doubt.

Now let's talk about element three. The third element requires the United States to prove that Craft sent the mailings for the purpose of making a threat or knowing that the communication would be viewed as a threat.

Again, folks, simply looking at the threats themselves that you've seen time and time again in this case demonstrates their purpose to threaten and intimidate the recipient or knowledge that the communication would be viewed as a threat.

And, again, you heard from the victim family about incidents between their children and Craft's daughter that led to Craft banging on their door, directly using racist language against them, painting graffiti on their driveway containing racial slurs, and ultimately dropping racially charged threats in their yard and sending it to -- sending them in the mail to them.

There is simply no other reason Craft would have sent these threats other than for the purpose of making a threat or knowing that they would be viewed as a threat. And the United States would submit that for each of the charges it has proven element three beyond a reasonable doubt.

Element one requires that the United States prove beyond a reasonable doubt that Suzanne Craft knowingly mailed or caused to be mailed the five mailings. Here I'd like to again start with an issue that I don't believe is much in dispute, and that is that the letters were actually mailed to the Pinedas.

You heard testimony from Michella Pineda about how after getting one of these threatening letters in the mail, she went to check the family mail pile and found similar threatening letters.

You heard from Postal Inspector Charles Klein. He told you about the processing markings that the United States Postal Service puts on each piece of mail that's processed. He showed you these two demonstrative exhibits detailing those processing markings, including the cancellation marks indicating that the stamps were cancelled, those ZIP 11's which corresponds to the specific address that the mailing was destined for.

He also told you that he took a look at each of the five charged mailings, the November 2nd, 2020, one; the November 5th, 2020, one; the November 6th, 2020, one; the other November 6th, 2020, one; and the December 2020 one; and he told you that all

of those were processed through the United States Postal Service and all were mailed from a location in Louisville to the Pinedas. This was confirmed by those ZIP 11's, which indicate the Pineda address as their destination.

What this trial really focused on is who sent the mailings. And now, in her opening statement, Ms. Rea asked you to use your common sense, and I'll ask you to do the same thing. And when you do that, folks, there is no reasonable doubt that Suzanne Craft mailed these racially charged threats to the Pinedas in November and December 2020.

And how do we know that? Video caught her painting racial slurs on the Pinedas' driveway. She directed a racially charged jingle at the Pineda children using the same language used in the mailings. Video caught her dropping two of the threats in the Pinedas' yard. The mailings were addressed to her mistaken version of Michella's name. The threats are on her mail. She told you they were on her mail. Her ex-boyfriend's bullets were found in one of the letters. She interfered with a witness. Some of the mailings contained the same pasta box. The threats share the same characteristics. Her fingerprints are on one of the threats, and she cataloged the Pineda family.

Now let's talk about how all of this was proven to you, and that story of how we know that Craft sent these threats begins when the Pinedas moved into what they thought would be their forever home in April 2019.

As you heard from the victim family, in particular their children, K.P. and S.P.1[redacted], the defendant's harassment started shortly after the Pinedas moved into 510 [redacted] and Craft discovered the children's racial makeup.

You heard from the victim family's children, K.P. and S.P.1[redacted], about an incident in the cul-de-sac in the summer of 2019 where Craft's daughter, S.W.[redacted], referred to one of the Pineda children using the N-word, leading Michella and Connie to instruct their children to stay away from S.W.[redacted] and avoid her.

You heard from K.P. regarding another incident March 22nd, 2020, where Craft's daughter, S.W.[redacted], used the words "N-let, N-let, N-let" and then the N-word. You also heard from K.P. about how she confronted S.W.[redacted].

And you also heard from K.P. and Michella about how Craft, a grown woman upset with how K.P. interacted with her daughter, S.W.[redacted], came to the Pinedas' property, banged on their front door yelling down to her daughter, "S.W.[redacted], what the F did that N-word say to you?"

You also heard the victim family, how later that day Craft, upon returning to the cul-de-sac, threatened to run over S[redacted], an innocent girl riding her bike in the cul-de-sac.

You heard testimony about how, on June 7th, 2020, the Pinedas and Craft had a painting on their driveways, the same orange paint with drips on the sidewalk in between the houses, one on the Pinedas' driveway saying, "Go away N-word," a racist

order telling the Pineda kids to leave; the other on Craft's driveway, "N-word -- No N-word, only whites," harkening back to a different era telling the Pineda children a place they could not go.

You also heard from Connie and Michella about how after this incident they activated their security cameras and they moved them to a tree closer to the driveway.

And, again, you heard from Michella and Connie Pineda about how once again, on the morning of June 16th, 2020, they awoke to find another disgusting painting on their driveway. Written again in orange paint was the racist threat "No N-words" and a swastika underneath. You heard the Pinedas tell you they were scared, humiliated, angry; and they were worried about their kids, especially K.P. and S.P.1[redacted], their multiracial Black children at whom the threats were directed.

This time there was video. You'll be able to watch this video in the jury room. We've seen it. But if you'll recall in that video, at 3:27 a.m., we see Craft coming down, walking across the sidewalk, approaching the Pinedas' house, spraying her racial graffiti on the Pinedas' driveway and then returning back. You also have video from Matt Lanham, who had no beef with the Pinedas or Craft, confirming this event, showing Craft walking back up her own driveway after her act of vandalism.

For a third time, on the morning of June 27th, the Pinedas once again found another racial slur painted on their driveway.

This time it was written in gold paint, and it said "Go N-words" with a swastika underneath. Again, there was video. And yet again, that video shows Craft walking over to the Pinedas' driveway in the early morning hours, painting the racial slurs on the driveway, walking back to her home, up her driveway. Lanham's video confirms this.

Shortly after the third driveway painting, the Pinedas' filed a civil lawsuit against Craft and the Lake Forest homeowners association in a desperate effort to get things to stop. Not only did it not work, it had the opposite effect. Craft only escalated her behaviors.

In fact, you heard from Michella how, in August 2020, she heard Craft while on Betty Probst's back deck sing a racially charged jingle which included the word "N-let" and a reference to "two dead N-lets hanging in a tree."

And in November 2020, while working outside, you heard from the Pinedas about how they found two racially charged, threatening letters in their yard in plastic bags near their fountain. One of the them contained the threat: "You had enough N-word bitch." The other contained the threat: "Die stupid bitch, move out." That mailing also contained a portion of a Barilla pasta box, not the only time we'll see this pasta box come up.

And you don't even have to take the Pinedas' word for the fact that the threatening mailings were left in their yard. You

saw it on video. You saw Craft putting them in the yard on two separate occasions.

Let's start with October 18th, 2020, when she throws something in their yard, walks back to her garage, and then gets in her car and leaves.

(Government playing video.)

(Government playing video.)

(Government playing video.)

MR. TIEKE: And now the second time, the November 1st, 2020.

(Government playing video.)

MR. TIEKE: You also saw how each of the mailings was addressed incorrectly to Michelle Pineda with an "E." You heard Michella tell you that she never goes by that name but has heard Craft refer to her as that. Indeed, you also saw in Craft's phone her contact card for Michella, which she set up in July 2019, incorrectly referring to Michella as Michelle with an "E," exactly the same way the threatening mailings were addressed.

You also heard that the threats were on Craft's mail. You don't even have to take the United States' word for that. Craft told you herself that it was on her mail.

You heard testimony from Ms. Ballenger with the Metro Police Department. She told you, on November 30th, 2020, she received a call from Craft claiming that on November 21st, 2020, her mail

was stolen from her mailbox. Ironically, despite it being stolen, she knew exactly what was in her mail when it was allegedly stolen, claiming there was a Fifth Third Bank statement, a Visa credit card statement, and a Girl Scouts letter. She told you that today. Two of the three items were found in the threatening mailings.

There was some suggestion that Craft knew what was in the mailings because of the Facebook posts by the Pinedas detailing the mailings. However, you know that's not true. One of the items she claimed was stolen was a Girl Scouts letter. However, you know that at the time that the Pinedas possessed the mailings, the writings on the Girl Scout letter were obliterated. You couldn't see that it was a Girl Scouts letter. The Pinedas couldn't read it. The FBI lab examiner, when he received it, he couldn't read it. Somehow, magically, Craft told you she could.

Only later, as you heard from FBI Lab Specialist Hector Maldonado, when the FBI lab applied special photographic techniques in August of 2021 to this mailing did it become apparent that the threat was on a Girl Scouts envelope.

Caught up in her own stories, Craft on two separate jail calls tells her mother -- claiming now that the mail was stolen from her trash. Use your common sense, folks.

You also heard from Postal Inspector Klein. He talked to you about those ZIP 11's, that postal service marking regarding

the destination address. Inspector Klein told you that the inner envelope containing the threat "Die, die, stupid N-word" in the December mailing to the Pinedas, the subject of Count 5 in this case, was again on the back of a piece of mail that was originally, as confirmed by that ZIP 11, sent to Craft's specific address. And you can see that on the screen there.

You heard from Connie and Michella how in November 2020 they were outside with their neighbor Brian Recktenwald when Michella walked down and retrieved an envelope. You heard how inside was another threat, this one containing physical bullets.

If we could go to the Elmo, please.

These two bullets.

You also heard from Craft's ex-boyfriend and S.W. [redacted] W[redacted]' father. He told you that Craft was the one that initially texted him asking him how the Pinedas got the bullets. You heard about how, when he lived with Craft, he had three bullets. He told you that he thought nothing of those bullets for years. They were in with his military stuff. He hadn't seen them in years, since he moved out of 507 [redacted].

He told you how he immediately recognized the bullets the Pinedas received as his bullets based on the watermark on them from the time the basement had flooded at 507 when he had lived there.

Richard Watts also told you that after receiving Craft's text and checking the box of his military items, he was missing

two bullets, those bullets. He provided the one remaining matching bullet that he had to the FBI.

If we could go back to the slides, please.

You also heard how, prior to a meeting with the FBI, Richard Watts met with Craft and told her that he thought the bullets the Pinedas received were his. He told you that he testified in the grand jury on May of 2022 and again told you the same -- and told that same thing to the grand jury.

In a phone call, he told Craft about testifying. He told her that he told the grand jury the bullets were his. Then she accused him of changing his story, despite the fact that he had always been consistent that the bullets were his, and that's exactly what he told you from the witness stand.

You also heard that on July 28th, 2022, the United States sent a letter to Craft telling her that she was a target of a federal investigation.

You heard from Richard Watts that on that very same day his daughter, S.W. W, despite having her own cell phone, called him from Craft's phone and left an odd message relaying a story about bullets being in a drawer, a story he did not recognize. He told you that he'd found this call odd and that it sounded to him like Craft was trying to influence S.W. to make the call.

You also saw the pasta box. The mailings all shared the same characteristics -- threatening, racially charged messages in cutout letters placed or mailed in envelopes.

Further connecting them is the use of pieces of the same pasta box in three separate mailings, a piece used in the threat that Craft is caught on video dropping in the Pinedas' yard by their fountain, a piece used in the threat containing Richard Watts' bullets, and a piece used in the Count 3 mailing containing the threat "Two dead N-lets." And, folks, you know these are pieces of the same pasta box because you watched Task Force Officer Kristen Downs come up here and put those pieces together for you.

FBI Forensic Examiner Icel Kuznetsova, she told you how she found two fingerprints belonging to Craft on the inner envelope on the threat "You will die bitch." You heard how this identification was confirmed by the FBI lab's internal verification process. You also heard how Examiner Kuznetsova confirmed that the fingerprints she used for analysis belonged to Craft by comparing them to fingerprint cards from ones taken from Craft when she was arrested in this case.

And quite disturbingly, you heard how Craft stockpiled pictures of the Pineda family whom she was terrorizing. Her phone contained images of the Pinedas and their five children. Craft saved them. She cropped them, manipulated them, and she sent them to others.

Not only does her past behavior identify her as the person mailing these threats, but the letters themselves, as we just discussed, have evidence directly connecting them to Craft. I'd

submit to you that the United States has proved beyond a reasonable doubt that Suzanne Craft knowingly mailed or caused to be mailed the five mailings.

If I can go to the Elmo, please.

And we walked through each of those elements for each of those mailings, and you'll be able to do that for all five, ladies and gentlemen.

Back to the presentation.

After you find Craft guilty of mailing the five threatening letters, the Government is asking you to also find that she engaged in these offenses against the Pinedas because of their actual or perceived race or color, as we talked about this when we reviewed the jury instructions earlier and as you heard Judge discuss that.

And, folks, you know she did this to the Pinedas because of race. She painted racial slurs on their driveway. She used racial slurs, "N-word" and "N-let," when referring to them. She threw racially charged threats in their yard, and she sent them the racially charged mailings to kill them. You have all of those things, but do you need anything more than the language of the mailings themselves?

Ladies and gentlemen, go back in that jury room, follow the evidence, follow the law, and take it to the only place that it leads and find the defendant guilty. Thank you.

THE COURT: Members of the jury, before you hear the

next closing argument, we're going to take a brief break, about ten minutes.

Remember the admonition. It's as important as ever. Do not discuss anything throughout the course of the trial. Do not discuss the instructions I already gave you. Do not discuss the argument that you have heard. Keep all of that to yourself until we send you to the deliberation room a little later today.

We'll see you in about ten minutes.

(Jury out 12:03 p.m.)

THE COURT: Thank you. You may be seated. The jury has left the courtroom.

We will resume in about ten minutes, Ms. Rea.

MS. REA: Yes, Your Honor. Thank you.

(Recess at 12:03 p.m. until 12:16 p.m. Jury out.)

THE COURT: We are back on the record. The jury is not yet back in the courtroom.

Let me just speak a word to the folks in the gallery. Court rules prohibit recording anything -- any part of a court proceeding, including a trial. So I just want to remind you that if you have a cell phone on you, it must be turned off; and there should be no recording, either of sound or of video, pictures included, in the courtroom. We occasionally find it necessary to remind folks of that, but that is -- that is a court rule.

So are you ready to proceed, Ms. Rea?

MS. REA: I am, Your Honor.

(Jury in 12:17 p.m.)

THE COURT: Thank you, members of the jury.

Ms. Rea.

MS. REA: Thank you, Your Honor.

Your job this afternoon will be to determine whether the United States has proven Suzanne Craft guilty of the five counts that are in the instructions that the Court has read to you for five items that were received by the Pinedas November/December of 2020.

Your job is not to determine whether she's a good or bad neighbor, not to determine whether her daughter had an altercation/confrontation with the neighbors. Your job is to make a determination about whether she has been proven guilty of those counts, as the instructions told you.

The background that we have spent a fair amount of time talking through, both in evidence and then in the U.S. closing, gives you the context. I'm gonna talk about it as -- a lot as well, but to go back to the sports analogy, which I am generally terrible with, keep your eye on the ball. That is what your role is here today is whether she's been proven guilty of those counts.

I do want to talk through the history, how we get to the fall of 2020. The Pineda family moved into the neighborhood April of 2019, pretty quickly met Ms. Craft and her daughter.

And as we have heard, interactions were cordial at first. Kids, if not playing together, played in the cul-de-sac at the same time. We have heard about a cordial-to-friendly text exchange that was maintained. Ms. Craft thought she was speaking consistently with Michella. She was speaking with Michella and/or Connie at different points, as it turns out.

We did not hear any indication that Ms. Craft was given reason to think something had gone wrong, that her daughter had done something -- that anything had happened in connection with the use of a racial slur in the summer -- late summer/fall of 2019. And we have no evidence that Ms. Craft was harassing the Pineda family during that period of time.

The first kind of flash point that we heard about was in March of 2020, and I'm gonna ask you to think about what you heard about that account. You heard that the slur was uttered by S.W.[redacted] every time the child, S[redacted], or -- excuse me -- that K.P. rode by in the cul-de-sac, in a cul-de-sac -- in what you've heard is a pretty small cul-de-sac. We're early COVID. Everybody's home. We haven't heard about anybody else hearing that.

You've also heard that there was an ensuing or following altercation wherein the Pineda family said that Ms. Craft banged on the door and said, "What the F did that 'N' say to you?" and that following that there was a threat to run over S[redacted].

I am gonna ask you to think critically and carefully about

that account and to ask you to put it in the context of how it was communicated relatively contemporaneously to -- in an email to the HOA. No mention of racial slurs, no mention of threats to run over. It was a "We got into it with her." Also with note to that email and two sides of that exchange, Michella is referred to as "Michelle." So I submit to you that it's not the tremendous red flag or connection point that perhaps it's been put to you as.

Another thing with respect to that event that I think should cause you to think carefully about it, a threat to run over a child and someone standing staring at your house for a long period of time thereafter might give you reason to call authorities for help. It is a serious threat, and you could call for help for that. And if she's still standing in the driveway or in the cul-de-sac staring at you, she's still there. So I'd ask you to think about how that event transpired and whether instead it makes more sense that they got into it, as Connie's email said.

The next event that you heard about is the 6-7 double driveway paintings. And this was an occasion where there was a painting both on the 507 driveway and on the 510 driveway. There are -- the videos that you have seen for that are one from Matt Lanham's camera from that night and one from Ms. Craft's camera from that night. You will have these items to review. I'm gonna play some of it for you. I'm not gonna barrage you

with watching all of them again, but I'm gonna talk through things I'd ask you to look for in them.

Mr. Lanham's video, when he narrated for you what he thought happened, he thought the person came down Ms. Craft's driveway. I submit to you that they didn't. There's the -- not always a barrier but an area of grass between the two driveways. In some videos it's grown up. In some videos it's not.

That particular one, if you watch it carefully, you can see the person come down Betty Probst's driveway, go around that patch of what is then tall grass, go up Suzanne's driveway. And, golly, it's fuzzy, but you can also see them linger up there around where the sidewalk meets the driveway for a period of time. Watch it for yourself. But this is the earliest point at which we have something to do with anybody's driveway on camera. They're coming down Betty's driveway.

We also admitted video from Suzanne's Ring camera from 1:49 that night or -- yeah, 1:49 that night. Mr. Lanham's video is one, I think, 59. So ten minutes -- ten minutes later -- of a person right in front of her house, in the area where her sprinklers are, turning on the sprinklers because she heard the noise. I think you can look at that pretty readily and see it's a -- it is not a person who is Suzanne Craft. It's a pretty small person, certainly smaller than her.

Another important thing to know about that is Suzanne asked for Mr. Lanham's video. He gave it to her. She knew at that

point anything that goes on would be captured on video. With that knowledge, I would ask you to ask yourself, why would a person go down their own driveway, proceed to spray-paint racial slurs on someone else's driveway and return? You know it's on film. She knew it was on film from 6-7. It does not make sense that you would continue to -- essentially, it's a display to do that, if this is something you want to do and something you want to not have people know you do.

The next -- and the other thing I'll say is Ms. Craft thought that the Pineda family had video at that point. She had asked them to check their cameras for something for her for something that happened at her house. They said they would. So right or wrong, she also thought that they had video that could capture things that happened in the cul-de-sac. Do you put on this display thereafter when you know what is being -- whatever would be happening is being observed as being recorded?

The next event that we have are the 6-16 paintings. And for that one, what -- the video that we have is both from the Pineda camera as well as from the Lanham driveway. Take a close look at that one as well. I think you'll see the person coming down Ms. Probst's driveway.

In the video from the Pineda family cameras, it actually stops while they're still spray-painting. So you don't see a return. The Lanham video, it appears they come down Betty's driveway. It does look like they go back up Suzanne's driveway

and disappear.

With respect to that, do take a look at the physical characteristics of that person. And, remember, you've got an Exhibit 3, a photo of what Ms. Craft looked like in August of 2020. You can look at her arms. You can look at her legs. You can look at her feet. You can look at her stature, and you can compare it to the person in that video. And I submit to you those are 9-1/2, size 10 feet. Those aren't Suzanne's arms. When they -- slim arms extend out for the spray-painting. Compare those things for yourself to see what it is that -- how they match up. And I argue to you that you -- that you will not find that they do.

While I'm talking about that video, I think it's also -- it stops. We don't see where the person goes back to. Apparently those cameras record nonstop. Does the WiFi go out? Why does that stop? Why don't we have the complete transaction?

Regardless, after this, as of 6-19, according to what you heard from the U.S. and I agree with, these videos are posted on Facebook. If Ms. Craft did not know before that there is video capturing everything in that cul-de-sac, she does now. She knew Lanham had video before. I submit to you she thought the Pinedas had video before. She absolutely knows it now because it has been publicly posted.

It defies logic that you keep going over there. At that point, this is a person who wants to appear on camera.

Ms. Craft, attempting to spray-paint racial slurs, later dropped notes in the fountain, that wouldn't be someone who wanted to appear on camera. The fact that this person is Suzanne Craft does not make sense for that reason.

I think there's other arguments, other reasons it doesn't make sense either, but the simple fact of you know it's being recorded, you know you're suspected, you keep coming down your driveway when you know that that would be captured, I don't think it's something that is reasonable to conclude that Ms. Craft would have done.

The last video with respect to any driveway painting is from 6-27. Take a look at that one. And it appears, from looking at it, that the person does come down Suzanne's driveway. You don't see them cross over from the garage. You see them come down the side of the driveway closest to Betty's area, and then same thing when they return. You see them come up that side of the driveway. You do not see them cross over to go to her garage.

The clothing looks the same as last time. The physical appearance looks the same as last time. Again, small feet, the slim arms, not the features of Suzanne Craft.

You've also been shown and it's been admitted video from Matt Lanham's camera on that day. That one's fuzzy. The person blends in with the grass. Take a look at it to see what you can make of it, but you're gonna get more information out of that

other video.

And while I'm talking about those videos and what they capture, you heard Suzanne speaking with Mr. Tieke about the garage. And it doesn't show anyone going in the garage. You can see someone in that 10-18 video going in the direction of the garage from the video on the Pinedas' tree. The door is obscured by a bush. You do see someone going in that direction. It is not the same as seeing someone go into the garage. And I'll talk to you about the time on those 10-18 videos as well because I think that is important.

So you have been given three videos from the evening of 10-18. The first one is time-stamped, and you've got the time stamps in the exhibits that you will have. So the first one time-stamped 1:41 a.m., that video is 1 minute and 14 seconds long. So that one's gonna end around about 1:42, 1:42 and a half, if I can still do math. That is the beginning. That is when you see the person go down the driveway, around the sidewalk, over by the fountain, and then start to head back. Then it stops.

We do have another video from that same view. It's a different clip. This is not a continuous piece of video that you've simply been shown this part and then this part. It is a different clip. Look at the time stamp. That one starts at 1:47 a.m. It does not roll straight through. It does not start and stop. There's, what, about four minutes between those.

You do have a view from another camera of part of later on in these events. That time stamp is 1:46 a.m. 1:46 a.m. you are looking at a view through some trees of Suzanne's garage. That's the one where you see the car back out. So we've still got a break between these. These are not continuous, you're seeing the whole thing at once.

Suzanne talked to you about what she was doing at that time, and I mean that night. I also mean more broadly. She was leaving to go stay with her friend Tammy. She told you she was -- she had begun doing this so that she wouldn't be home so that people couldn't say that she was doing things that she wouldn't do. She did it -- while not every night, she did it with some frequency.

And I submit to you that everybody in the neighborhood knew when she was leaving and that she had begun leaving late at night to go stay with her friend Tammy. She was worried that there would be more videos made where someone pretended to be her.

The last video that you saw -- so 11-1, that's the loud one because of the inflatables. In that particular one, you will see it's dark around the garage. You see a person come down from this dark area, go by the fountain, and then go back up into the dark area.

And, remember, these are not, according to the testimony we heard, motion-activated cameras. These are cameras that record

all the time. You just have to go back and pull the footage and capture that within 30 days. And in these instances, we know that that was done because we have some of it. We have pieces of it.

I want to talk through some of the items, and I'm going to talk through them with respect to the counts that you have. You have -- and this is just -- I will just use my computer. This is the item in Count 1, which is Exhibit 5, a postmark of 2 November 2020.

This particular item -- and what I've tried to do is kind of put together all of the information that we have so I can talk through it with you. This is the item -- that's the Girl Scout envelope. And you can see in the photos that have been introduced into evidence that the end of that ZIP code, the uniquely identifying [redacted], is visible. If you see this posted online, you see the end of your ZIP code.

And I want to look more -- I'm gonna switch just to another exhibit of the same thing. These are the FBI photos of the same item. So Girl Scout -- I argue to you that you see that posted on Facebook, you know it's a Girl Scout envelope. You can read "Girl Scouts." You can see the emblem. It did not require special knowledge, because Ms. Craft had put the thing together, for her to look at that as posted and know that it's a Girl Scout envelope.

And while I'm talking about that, it also -- back to what

does and does not make sense. If this is an attempt to obscure your address, to obscure a return address, it cannot be something that one hopes to succeed.

We heard from Mr. Maldonado, who testified about removing the obliteration, and we could see all of it clearly. But you can look at it right now and know it's a Girl Scout envelope, and you know by the ZIP code where it's going to. So I don't think that required any special knowledge of Suzanne.

We can take that down. Thank you.

Also with respect to that item, the inner envelope, there was DNA found on that inner envelope. It was found to be a profile that was suitable for comparison, female DNA. Ms. Craft was excluded from that.

The second item is -- it's on the craft paper envelope, and I'll get it up before I ask to share it with you so you don't have to bear with me too much.

So the second count -- and I will share that. This is Exhibit 5B -- is an item that was postmarked 5 November 2020 with a -- what I would call a craft envelope because of the paper with those cutout letters on it. On this particular item, we have no DNA. We have no fingerprints. We just have the item. That's Count 2, just to kind of walk through and distinguish them.

We can take that down before I go to the next.

Count 3 is a pasta box so -- and may I share my screen

again.

So Count 3 has an outer envelope with an address. 6 November 2020 is when that one was postmarked. An inner envelope -- this inner envelope is one that had Michella Pineda's prints on it. So it's not the outside with the address. It's the inner envelope but outside of the pasta box with the cutout letters on it.

We can take that down while I move to the next one.

So the next item we have is Count 4. I'll just go ahead and do it. This one we have another outer envelope in which there was forensic evidence found. This time the outer envelope contains or has Ms. Connie Pineda's prints.

There's forensic evidence on another thing, though, and I want to talk through what that is, this item. So this item has Suzanne's fingerprints on it. They are not on this side of the item. You had some -- we heard from the fingerprint examiner that you would expect someone's fingerprints to be found on the outside of mail because that's what we touch, which is the outside of mail. That totally makes sense.

But what I want you to note is where the fingerprints were, being on the other side of this item, is the outside of the piece of mail, which is the thing you would touch when you received it and when you opened it before you disposed of it. So don't be confused by the inside/outside thing. Her fingerprints are found on the outside of this piece of mail,

which is consistent with her account of "I got the mail. I opened it. I threw it away."

The last item and as far as the count -- so we can take that down -- did not contain any forensic evidence as far as DNA or any fingerprints on it.

There was one other item that did have DNA on it. That is the -- it's not charged. It's the item that was taken from the mailbox with the stamps and the gloves and the pasta box and the rounds that were inside of that.

On that item there was a mixture of female DNA found from three people. Ms. Craft was excluded from that, being a contributor to that, to any of those profiles. Also know that there were no other reference samples that were provided to the examiner. So whether or not those would match up to anybody else in the case, we don't know because those other reference samples were not provided.

And while I'm talking about this, I'll talk about the pasta box, touching back on what makes sense and what does not make sense. Three items, three -- one in the mailing with the bullets; one in a "mailing" mailing; one, if I recall correctly, that was found in the yard contained pieces of a pasta box. It's the same pasta box.

What is that consistent with? Consistent with throwing away one pasta box which is in the same bag of trash as your other -- as your mail and somebody getting that one bag of trash.

Because if you're gonna put together these little craft projects with cutout letters and you are savvy enough to engage in that, you do it with pieces of the same pasta box so that TFO Downs can match them up and go, "Look, here's the pasta box," I argue to you that you do not.

Also, with respect to the projects, you know, gluing on the letters, you are savvy enough to manage that, which takes a lot of contact to put all of that together -- you're savvy enough to do all of that, not leave your DNA, not leave a fingerprint on the "interior" interior of anything, but you use the same pasta box, you use your mail with your ZIP code on it, with your daughter's name on it with an easily discernible address connected to your daughter -- it does not make sense.

While I'm still talking about the mail, the theft of mail report that was done by Ms. Craft was done on November 30th for mail that she did not get after mail delivery on November the 21st. That is after this.

So the mailings that the Pinedas had that they turned over to police, they turned those items over on 11-13. They posted several of them on Facebook on 11-11. Ms. Craft was not saying that those items were stolen from her on 11-21 because they were already in the possession of the Pineda family and had been publicized. That does not make sense.

She knew what mail she was supposed to get. She knew it had been delivered from observing her Ring camera, and she didn't

have it. She's not saying those were the same items, and she explained that to you. She suspected it was her trash. She suspected it was her trash by the appearance of the items on -- as posted on Facebook. All the used envelopes with the business printing on them, the postmarks from October of 2020, she suspected those things.

She did confirm those things when she saw the photos of the three pieces of the same pasta box. There's nothing particularly sophisticated or that requires any special knowledge because you did the thing in making that conclusion.

So one more thing about the mailing before I talk in more detail about what makes sense and what does not. The item with the bullets being taken from the mailbox after the mailman delivered the mail, it's not postmarked. I think that's why we had a discussion about how did it get into the mailbox, seemingly put there by the mailman, if it is -- if it didn't go through the mail system?

There was discussion about, well, sometimes a postal carrier will, if it's close by, take one from one mailbox, take it to the other mailbox, skip that whole process. But what does that mean? That means somebody had to put it in the other mailbox the same day, the night before, within very close time for it to be there to be picked up. And postal carriers have routes. You could talk to that postal carrier. You could see if he took -- he or she took that particular item out of another mailbox and

simply transported it.

We also know at this point in November of 2020, not everybody -- several people on that cul-de-sac -- particularly Matt Lanham and we know the Pineda family have cameras, and they record all the time. If we wanted -- if we thought somebody put that in an adjacent mailbox, we could look at that. We could find that.

The other option that I think you could entertain is that you're being asked to believe that Ms. Craft put it in the mailbox and it was there; and the timing with when the mailman went to the mailbox is just consistent with it was already there. I submit to you with, again, cameras throughout the cul-de-sac, that's something that we could find out too. We do not have that. That is not something that anybody chose to offer you.

We also know from the testimony of the postal inspector that that bar code that's sprayed on the back of envelopes tells us what machine anywhere in the world -- not in the world -- anywhere in the U.S. that piece of mail went through when it was processed and what time, but that information is recoverable if you get to it before the particular code is recycled. It didn't happen here. It didn't happen here.

We know that many of the pieces of mail were gathered/held on to by the Pineda family until 11-13 -- it's in the instructions you have -- when they gave them to LMPD. We know

that many of them were received by 11-6 because they were posted on Facebook. We can't get that information to know where they were processed through to see, do we have video of someone taking those items to a particular postal facility? Those codes have had -- have long been recycled, and that's not something that we could get.

I want to talk a little bit more about what does not make sense. Ms. Craft, based on all of the testimony that we have heard, had never been to the farm where Richard Watts lived. That's where he says the rounds were, to the best of his knowledge. He had moved several times, hadn't -- hadn't eyeballed them since 2007. She had not been there. She did not know what the address was. He had not shown them to her.

We don't actually have reason to think that she knew that he possessed the things. She -- both because he says he didn't show them to her and because she sent him a photograph of them. She didn't send him a photograph of them and say, "Holy moly, these are your bullets. What's going on here?" She sent him a photograph of them and said, "They say I put bullets in their mailbox."

Again, would you send a photograph of the items if you knew the person could identify the items and say, "Oh, golly, you must have taken those from me"? That does not make sense.

So we are left with did she have her then 11-year-old daughter take them when there's no indication that S.W. knew

they existed either until later? At the time in November 2020, no indication that S.W. knew they existed at that time. Richard said he never told her about them.

So the other thing I'd ask you to think about in that regard, when he saw the photo in November of 2020, it was just that. It was a photo. He hadn't seen the things since 2007. He hadn't laid eyes on them for 13 years. They are, according to him, 5.56 rounds that you shoot out of an M16. They're not exceedingly rare.

And I also ask you not to get -- to think carefully about what we mean when we say "watermark." It's a rust spot. It's not a serial number. It's not something somebody chisels on a particular item so that you can identify it. These are rust spots, rust spots that develop on metal when it gets wet. I don't think as well that's a hallmark that creates a great tie between the items. He hadn't seen them in person for 13 years.

So in this case, I think in order to be convinced beyond a reasonable doubt that Ms. Craft is guilty of these charges, you have to think that she is so savvy and sophisticated that she at some point got hands on and held onto those bullets between 2007 and 2017 to save them for some nefarious purpose, or she asked her 11-year-old daughter to go get them because she was aware of their existence, or that she broke into the farm and took them when she did not know even where he lived. And he's got cameras, and there's no indication that that actually happened.

You have to think that Suzanne is that sophisticated.

You also have to think that she is, like I said, sophisticated enough that she does the projects of putting the letters on the mailings without leaving evidence on the -- actually on the inside of the inside but that also she is reckless and unthinking enough that she goes straight from her own garage, deposits something near the Pinedas' fountain, comes back, gets in her car and drives away. That is not a cohesive picture of an individual. You're not simultaneously that sophisticated, that much of an engineer of things that you -- that the one goes with the other.

And, also, that she would be that sophisticated and then she uses her own mail, which is very quickly and readily identifiable as her own mail, and that she walked directly toward a camera that she knew was capturing what happened on that sidewalk. She knew from June what was happening on that sidewalk was captured on that camera.

If somebody wants to leave something, if somebody wants to deface property and they do not want to be seen on that camera, they go around. They go around Ms. Betty's house in the back yard, and they don't get captured on camera.

We have talked earlier in this case about the lawsuit that the Pinedas filed against Ms. Craft. And you heard evidence that she's on assistance, that she may not have had a lot. She's not the only one being sued. So I would remind you that

it's also the Lake Forest Community Association, which is the HOA, that is also being sued, even if they did -- the Pineda family did not think that she had particularly vast resources.

Suzanne's cell phone was seized in this case and was reviewed by TFO Downs. And I think anymore cell phones are like a window into our brains, good, bad, or ugly. It was a very, very large amount of data. It contained photos, her videos, her chats, which are text messages, social media, some web searches, websites visited, even some location data, and you heard about some of those things. You have heard some text messages that were exchanged between her and Tammy or between her and Betty.

You've gotten a window into her brain. And the photos that she was saving of the Pineda family, I think that also gives you a window into what she was thinking about, which is pretty well articulated in the messages that she sent to Michella when she didn't know that Michella had blocked her. "Why? Why? Why?" She's trying to make sense of it, and she's -- she's struggling to make sense of it.

She sent a lot of messages. "Why is this happening? Why are you doing -- what -- where does this hatred of my daughter come from? Why?" Same thing with the photos of the Pineda children. She knows that there's an accusation of using racial slurs. She's trying to make sense of how that connects.

There were questions asked of her about "You were researching the Pineda family before this." She was researching

the father, the person who had bought the house. She was not taking and saving close-up pictures of the children until later, after the allegation of using the racial slurs.

You were not presented with evidence from her cell phone download that showed her using those slurs against these children or investigating, you know, how to put together craft projects and threats to communicate to people and not get caught. You were not shown the kind of -- any behind-the-scenes action in that phone, which is a window to her brain, that shows her using that language, that shows her plotting to commit these acts.

And I leave myself notes because I forget things if I don't. Back just briefly to the rounds, another that just does not make sense. If Suzanne knew where they were, if Suzanne took them from Richard, don't you think she would have taken all three? Why leave one? Why leave one for somebody to go, "Oh, that matches up." It does not make sense.

I think it is more likely that somewhere in the last 15 years, 13 years, when he went looking for it, he misplaced two of them. He has one. He saw a photo and he thought they were his. That makes more sense than a -- what is candidly an impossible way of Suzanne getting her hands on them and then leaving one, then deciding to leave some evidence behind.

So I now, after kind of walking through these things, have to sit down. The U.S. will have the chance to talk to you last,

which is entirely appropriate because it is their burden to prove guilt beyond a reasonable doubt, but it means I don't get to respond. Not getting to talk is hard for lawyers. So what I would ask -- or not getting to talk more is hard for lawyers.

What I would ask is that you keep in mind the things that I have pointed out and talked through with you. You will have these exhibits. You will have the videos. I invite you -- I encourage you to look at them closely and critically for what they actually show you and to think through those things.

I believe that once you have done that and read carefully through the instructions that the Court has read to you and looked at those elements and examined all of it, that you will not find that Suzanne is guilty of any of these five counts, and I'll ask you to return that verdict. Thank you.

MS. ZIMDAHL: Thank you, Your Honor.

Ladies and gentlemen, Ms. Rea asked you to keep your eye on the ball, but the last 30 minutes have been full of distractions and conspiracy theories.

She asked you to go back and look at Matt Lanham's video of that 6-7 -- June 7th driveway painting. She said, "Focus on where the person came from and where they go." That's a distraction. Matt Lanham told you he looked at that video. You've seen that video. It doesn't even capture anyone painting Ms. Craft's driveway. It's irrelevant. It's a distraction. It's taking your eye off the ball.

She told you to go watch Ms. Craft's Ring doorbell video. It's a distraction. They say the person in Ms. Craft's Ring doorbell video doesn't even look like Ms. Craft. Okay. That person isn't painting driveways. That person is not the one who's leaving threatening letters for the Pinedas. It's a distraction.

Ms. Rea told you some of Suzanne Craft's theories about what happened on October 18th, 2020, that day that Ms. Craft walked from her home, dropped a threatening letter in the Pinedas' fountain, then went home, went back in her garage and drove away in her car. You saw that video. You've seen those for yourselves. And, in fact, Ms. Craft told you today it was her leaving in the car.

Ms. Rea asked you to look at those time stamps. She asked you to believe that there's another person running around the neighborhood framing Ms. Craft; and she just happens to do this at the exact same moment that Ms. Craft is leaving, right before 2:00 a.m., to go to her friend Tammy's house. Ms. Craft doesn't see that person. She doesn't talk to that person, even though she's in the garage with this mysterious other person.

It's a distraction. These wild conspiracy theories -- look over here, ladies and gentlemen -- distractions. Keep your eye on the ball. The defense attorney was correct -- Ms. Rea is correct, keep your eye on the ball of this case.

She talked quite a bit about why would the defendant do this

when she knew that there were cameras in the neighborhood; right? You've heard a lot about security cameras that were located in this neighborhood.

Well, ladies and gentlemen, you saw a lot of evidence of Ms. Craft's obsession with the Pineda family, her anger toward them, how her conduct toward them was escalating each step along the way; and nothing seemed to stop her pattern, her harassment of this family. Why would a detail like a security camera stop her?

She escalated. Ms. Craft escalated from hurling racial slurs to painting the driveway to dropping the threatening letters and then sending them by mail, all of them full of the same racial slurs.

And she told you today that she thinks those video cameras are too blurry. She said -- you heard her sit right there and say, "You can't even tell if that's a man or a woman." She thought those cameras wouldn't be enough to prove who did it. She said today, "They don't show a face." She wasn't afraid of those cameras because she didn't think they could prove who did it.

I'm not here today to tell you that this course of conduct makes sense, as Ms. Rea asked you to think about. And, in fact, we would submit to you that terrorizing your neighbors on the basis of race, that doesn't make sense. What we're here telling you today and what you've seen over the course of this week is

that the evidence shows you that this is what happened.

And Ms. Rea also talked about the idea that the defendant was searching out and saving those photographs of the Craft -- I'm sorry -- the Pineda family. She's saving them on her phone. She talks about the timing of when that occurs. And somehow that's done to respond to these allegations that she knows about that she's painted the driveway. It's just silly. Use your common sense, ladies and gentlemen. That's ridiculous.

Even if a picture of the Pineda family is somehow helpful in a response to that allegation, stockpiling images of that family, cropping them out, taking individual images of those family members, their children, that's not how you respond.

Ms. Craft, she searched out these images. She saved them. She cropped them. She cut apart a family photo. She cut it apart just like she cut apart those letters that she glued onto those threatening mailings and just like she tried to cut apart this family with those racially motivated threatening letters.

Now, Ms. Craft, she found those images of the Pineda children from when they were younger. She took images from their school yearbook, and she sent those images out to other people, to her friends, to her neighbor, Betty Probst.

This is evidence of a woman who is obsessed with the Pineda family and who's now enraged that they're trying to stand up for themselves and seek help in protecting their family, a woman whose targeting of the family is ramping up. It's escalating to

sending them that pile of threatening letters.

And this idea that there was some proper purpose to these pictures is even more offensive in light of the evidence that you heard today that Ms. Craft was researching them well before even the driveway paintings. You heard today about research that she was doing on Michella Pineda's father.

Ms. Rea told you that a person's cell phone is a window into their brain. These photos and her research on the Pineda family, that's a window into Defendant Craft's brain, a window into her obsession with this Pineda family.

Ladies and gentlemen, what the defendant's conspiracy theories and the distractions in this case all fail to do is deal with all of the evidence that's been presented to you this week, and that is, all of the evidence that shows you that it is the defendant, Suzanne Craft, who sent these threatening mailings, these threatening, racially offensive letters to the Pineda family.

Those theories, those distractions, they fail to deal with the fact that it's Suzanne Craft who paints the slurs on the driveway three times. You see two videos of that. They fail to deal with the fact that it's Suzanne Craft, not some other theoretical person, who is hurling racial slurs at them, banging on their door and yelling the N-word, directing a jingle full of racial slurs at their children.

It doesn't deal with the video showing her putting those

threatening letters in their yard. It doesn't deal with the fact that -- and defense counsel said this is a small thing, but it's important nonetheless, that the mailings are addressed to Michelle, which you heard Ms. Craft sit on the stand and call her just this week.

It doesn't deal with the fact that those bullets came from Suzanne Craft's ex-boyfriend. How did someone else running around get his bullets? And, ladies and gentlemen, he sat here and told you that he has consistently and adamantly maintained that those are his bullets, despite Ms. Craft suggesting perhaps that's not his story.

And, of course, it doesn't deal with the cataloging of the Pineda family, all those pictures, that research, and the obsession that you saw in that window into her brain on Ms. Craft's phone.

And you can look at all of that evidence. Look at all of that evidence when you go back. Look at all of that to conclude that Suzanne Craft, the defendant, is the person that sent these threatening letters to the Pineda family, all of those mailings charged in Counts 1 through 5.

And I think, when you look at that, you're gonna see something very convincing and, that is, when you look at all of the evidence, you're going to see that the person, Ms. Craft, who drops the mailing by the fountain -- and you know that's her because you saw that she's the one who did that on that video --

and that the person who does that -- she drops those two letters in the yard. And those are, "You had enough N-word bitch" and "Die, die, stupid bitch, move out," those horribly offensive and threatening letters, the ones that share the same characteristics with these threatening mailings -- well, the one in the yard had the piece of pasta box. So did one of the mailings and so did the bullets that were wrapped up in that pasta box.

So, ladies and gentlemen, when you go back and you look at that evidence, you're gonna see that the woman, Suzanne Craft, who dropped it in the yard, is the woman who sent the mailings, is the woman who sent the bullets, the same woman who's threatening the Pineda family through all the events in this case. The person is Suzanne Craft. Find the defendant guilty.

THE COURT: Thank you, Counsel.

Members of the jury, I have a few remaining instructions for you.

Instruction Number 31. Now that all the evidence is in and the arguments are completed, you are free to talk about the case in the jury room. In fact, it is your duty to talk with each other about the evidence and to make every reasonable effort you can to reach unanimous agreement. Talk with each other, listen carefully and respectfully to each other's views, and keep an open mind as you listen to what your fellow jurors have to say.

Try your best to work out your differences. Do not hesitate

to change your mind if you are convinced that other jurors are right and that your original position was wrong, but do not ever change your mind just because other jurors see things differently or just to get the case over with. In the end, your vote must be exactly that, your own vote. It is important for you to reach unanimous agreement but only if you can do so honestly and in good conscience.

No one will be allowed to hear your discussions in the jury room, and no record will be made of what you say. So you should all feel free to speak your minds.

Listen carefully to what the other jurors have to say and then decide for yourself if the Government has proved the defendant guilty beyond a reasonable doubt.

Number 32. If you decide that the Government has proved the defendant guilty, then it will be my job to decide what the appropriate punishment should be.

Deciding what the punishment should be is my job, not yours. It would violate your oaths as jurors to even consider the possible punishment in deciding your verdict. Your job is to look at the evidence and decide if the Government has proved the defendant guilty beyond a reasonable doubt.

Number 33. Remember that the defendant is only on trial for the particular crimes charged in the indictment. Your job is limited to deciding whether the Government has proved the crimes charged.

Number 34. Let me finish up by repeating something that I said to you earlier. Nothing that I have said or done during this trial was meant to influence your decision in any way. You decide for yourselves if the Government has proved the defendant guilty beyond a reasonable doubt.

Instruction Number 35. Remember that if you elected to take notes during the trial, your notes should be used only as memory aids. You should not give your notes greater weight than your independent recollection of the evidence. You should rely upon your own independent recollection of the evidence or lack of evidence, and you should not be unduly influenced by notes of other jurors. Notes are not entitled to any more weight than the memory or impression of each juror. Whether you took notes or not, each of you must form and express your own opinion as to the facts of the case.

Number 36. I have prepared a verdict form that you should use to record your verdict. It is attached to these instructions. If you decide that the Government has proved a charge against the defendant beyond a reasonable doubt, say so by having your foreperson mark the appropriate place on the form. If you decide that the Government has not proved the charge against her beyond a reasonable doubt, say so by having your foreperson mark the appropriate place on the form.

If you find the defendant, Suzanne Craft, guilty of one or more of the charges, then you must address the special verdict

questions. If you find the defendant, Suzanne Craft, not guilty of all of the charges, then you must ignore the special verdict questions. Your foreperson should then sign the form, put the date on it, and return it to me.

This is the verdict form at the end of the instructions. It simply states: "We, the jury, find the defendant, Suzanne Craft, as to Count 1: Guilty or not guilty; as to Count 2: Guilty or not guilty," as to Count 3, 4, and 5, the same, "guilty or not guilty." There is a date line and a signature line for your foreperson.

The verdict form then reads: "If you find the defendant, Suzanne Craft, guilty as charged of one or more of the charges, then you must address the special verdict questions below. If you find the defendant, Suzanne Craft, not guilty as charged of all of the charges, then you will ignore the special verdict questions."

The second page contains the special verdict questions. It states, "We, the jury, having found the defendant, Suzanne Craft, guilty of one or more of the offenses charged in the indictment, further unanimously find that she selected the victims of the threatening communication because of their actual or perceived race or color."

There are five "yes" or "no" sections: As to Count 1, if applicable: Yes or no; as to Count 2, if applicable: Yes or no; as to Count 3, if applicable: Yes or no; as to Count 4, if

applicable, Yes or no; and as to Count 5, if applicable, Yes or no; and a similar date line and signature line for the foreperson.

Members of the jury, that concludes the instructions. The last remaining piece of business that we must undertake before I allow you to go to the jury deliberation room is we will now select two of you to remain here as alternate jurors.

The deputy clerk has all of your juror numbers in the wheel. She will randomly select two. If your number is called, please remain in place when I dismiss the rest of the jury.

DEPUTY CLERK: Number 5 and Number 340.

THE COURT: So Juror Number 5 and Juror Number 340, if you would remain in place.

The other 12 of you, I am going to ask you now to retire to deliberate.

(Jury out 1:22 p.m.)

THE COURT: Thank you. You may be seated. The jury has left the courtroom.

Juror Number 5 and Juror Number --

DEPUTY CLERK: 340.

THE COURT: -- 340, let me first thank you for your service. As I stated at the outset of this process, the jury trial is the bedrock of the American system. We could not conduct fair and impartial jury trials without the participation of all eligible citizens. So we thank you for not just showing

up on the first day and responding to the notice but participating through the course of this trial. You've put in the work. You've been patient. We appreciate that.

Now, here's how this works for you-all going forward: I am going to ask you to provide the deputy clerk with your cell phone numbers. And I'm going to let you leave, although I will ask you to maintain for the time being the same admonition. Please do not talk about the case with each other or anyone else, and the reason is simple.

If a juror should become ill, if a juror should have some other family emergency, whatever the case may be, and have to leave the deliberation process, it is conceivable that we would need you to come back. And the process -- the deliberation process then would start anew with you in place of the departed juror.

If the 12 who were selected go back and complete their work, we will give you notice when they have a verdict. If they reach a verdict, we will give you notice, and then you'll be released from the instruction that you cannot talk about the case. And like them, you will then be allowed to discuss the case, if you wish to do so. Any questions about that?

A JUROR: No.

THE COURT: Thank you both very much. I will have the clerk then ask you for your number. It will not be provided publicly. It will not be provided to counsel or anyone else.

She'll keep it so that she can contact you, and you can otherwise leave. Thank you.

Let me see counsel at the bench.

(Bench conference on the record.)

THE COURT: First, let me say I thought -- well, all three of you spent time in front of the jury. You were effective, and I thought you did nice jobs all the way around.

MS. REA: Thank you.

MR. TIEKE: Thank you, Your Honor.

THE COURT: The exhibits and the instructions will go back with the jury. I believe that on the last break the jury administrator ordered lunch. So my guess is, since they're getting back there at now 1:20, that that's probably their first order of business before they start picking through the instructions and reminding themselves of the process to select a foreperson, et cetera, et cetera. I think then the thing to do is we'll just wait.

MR. TIEKE: Yes, Your Honor.

THE COURT: Oh, I did want to tell you too, we will not be sending back a copy of the indictment. I just found it -- we do sometimes and other times we don't when it's -- sometimes you get dismissed counts, and it becomes confusing and we don't do that. And sometimes the instructions themselves sort of obviate the need to do that. I think that was true here.

MR. TIEKE: Yes, Your Honor.

THE COURT: Because the way we wrote the instructions for all five counts, the indictment language was utilized. So there's nothing to be gained from that. It's just one more thing -- one unnecessary thing, I should say, that they would not need to consult. That's all I have.

I'll ask each side to give a number or numbers where Natalie can reach you while we wait.

If we happen to get a question or something like that, I will -- I'll need at least one of you-all and you back in the courtroom before I respond, of course. Anything else?

MR. TIEKE: No, Your Honor. Thank you.

MS. REA: No, sir. Thank you.

THE COURT: Thank you-all.

(End of bench conference.)

THE COURT: Court will be in recess while the jury deliberates. Thank you.

(Recess at 1:27 p.m. until 1:46 p.m. Jury out.)

THE COURT: We're back on the record in U.S. v. Craft. The jury is not present.

Let me see counsel at the bench, please.

(Bench conference on the record.)

THE COURT: This is a first for me. This is just a note from the jury that indicates who their foreperson is. I think they have dutifully reported that despite not being asked.

So I wanted to put on the record that the note we received rather quickly does indicate they followed the instruction. The foreperson is Number 145.

So it's not a question. It doesn't call for a response, but I did want to call you here, put this on the record for you so that the record is clear that we received the note, and it has been dutifully reported. That's all I have for you.

MS. ZIMDAHL: Thank you, Your Honor.

MS. REA: Thank you, Your Honor.

MR. TIEKE: Thank you, Judge.

THE COURT: All right.

(End of bench conference.)

THE COURT: Thank you. We will return to recess status.

(Recess at 1:47 p.m. until 2:54 p.m. Jury out.)

DEPUTY CLERK: We are back on the record in 3:22-CR-94, United States of America v. Suzanne Craft.

THE COURT: Let me see the lawyers at the bench, please.

(Bench conference on the record.)

THE COURT: I propose to have the jury brought into the courtroom. I will announce to the gallery that we've received a message that they have a verdict.

It's been quick. So it'll take me a minute just -- it will take me a minute to review the verdict form for completeness.

MR. TIEKE: Yes, Your Honor.

THE COURT: So there might be a little bit of a pregnant pause up here. I just wanted -- I'm going to carefully make sure.

I will also tell you, if it is incomplete, all I'm gonna do is give it back and say, "Your verdict form is incomplete. Please retire and continue," no further -- not an *Allen* charge or anything, just the basic benchbook instruction to them to go back and finish their work. I'm not anticipating that, but if that's the case, that's what I'll do. Otherwise, we'll just take it in normal course.

MR. TIEKE: Yes, Your Honor.

MS. REA: Thank you, Your Honor.

MS. ZIMDAHL: Thank you.

(End of bench conference.)

THE COURT: The jury reports they have a verdict. We will invite them to return, please.

(Jury in 2:56 p.m.)

THE COURT: Members of the jury, who is your foreperson?

THE FOREPERSON: Me, Your Honor.

THE COURT: And has the jury reached a verdict?

THE FOREPERSON: We have, Your Honor.

THE COURT: Is the verdict unanimous?

THE FOREPERSON: Yes, Your Honor.

THE COURT: Please pass the verdict form to the CSO.

Members of the jury, your verdict will now be published. Following publication of your verdict, either of the parties may request that the jury be polled, that is, each of you will be asked to confirm individually that these are your verdicts. I will now publish the verdict.

We, the jury, find the defendant, Suzanne Craft, as to Count 1, guilty; as to Count 2, guilty; as to Count 3, guilty; as to Count 4, guilty; as to Count 5, guilty; dated today, signed by the foreperson.

As to the special verdict questions, we, the jury, having found the defendant, Suzanne Craft, guilty of one or more of the offenses charged in the indictment, further unanimously find that she selected the victims of the threatening communication because of their actual or perceived race or color. As to Count 1, yes; as to Count 2, yes; as to Count 3, yes; as to Count 4, yes; and as to Count 5, yes; also dated and signed by the foreperson.

Would either side like to inspect the verdict forms?

MS. REA: No, Your Honor.

MR. TIEKE: No, Your Honor.

THE COURT: Does either side wish to poll the jury?

MS. REA: No. Thank you, Your Honor.

MR. TIEKE: No, Your Honor.

THE COURT: Members of the jury, that concludes your

service in this matter. I'm now going to excuse you with the thanks of the Court as well as the parties for your diligence throughout the week and your patience with us. Thank you.

(Jury out 2:59 p.m.)

THE COURT: The jury having been excused -- they have now exited the courtroom -- Ms. Rea, do you wish to renew any motions at this time?

MS. REA: Not at this time, Your Honor, no.

THE COURT: Let's now proceed to set a date for a sentencing hearing.

DEPUTY CLERK: June 21st.

MS. REA: I didn't hear you.

DEPUTY CLERK: I'm sorry. June 21st.

MS. REA: That's fine.

DEPUTY CLERK: 9:30.

THE COURT: The clerk will file and record the jury's unanimous verdict. The order following the verdict will indicate that the sentencing hearing has been set for June 21 at 9:30. Is there anything else to come before the Court at this time?

MR. TIEKE: No, Your Honor.

MS. REA: No, Your Honor.

THE COURT: The defendant will be remanded to the custody of the Marshals Service. Court will be adjourned. Thank you.

(Proceedings concluded at 3:01 p.m.)

C E R T I F I C A T E

I CERTIFY THAT THE FOREGOING IS A CORRECT TRANSCRIPT FROM THE RECORD OF PROCEEDINGS IN THE ABOVE-ENTITLED MATTER.

s/Dena Legg — September 21, 2023
Certified Court Reporter No. 20042A157 — Date
Official Court Reporter

REDACTION CERTIFICATE

I certify that the foregoing is a true and correct copy of the transcript originally filed with the clerk of court on 09/21/23 and incorporating redactions of personal identifiers requested by the following attorney of record: Angela M. Rea in accordance with Judicial Conference policy. Redacted characters appear as a black box in the transcript.

s/Dena Legg — October 30, 2023
Certified Court Reporter No. 20042A157 — Date
Official Court Reporter

INDEX

GOVERNMENT WITNESS:

SUZANNE CRAFT (transcript previously filed)	8
JURY INSTRUCTIONS	11
GOVERNMENT CLOSING	35
DEFENSE CLOSING	52
GOVERNMENT REBUTTAL	73
JURY INSTRUCTIONS	79
JURY NOTE	86
VERDICT	87